

25LBCV02577 25LBCV02577

County: los-angeles

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Case Number: 25LBCV02577 Hearing Date: September 17, 2026 Dept: S28

BACKGROUND

On

September 12, 2025, Plaintiff

filed a lemon law complaint against Defendant.

On

June 10, 2026, Defendant filed the instant Motion for Summary Adjudication of the Fifth Cause of Action for Fraudulent Inducement – Concealment.

As

of September 15, 2026, Plaintiff has not filed an opposition.

DISCUSSION

Applicable

Law

The purpose of a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) “Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to

judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom [citation] and must view such evidence [citations] and such inferences [citations] in the light most favorable to the opposing party.” (Aguilar, supra, at pp. 844-845 [quotation marks omitted].)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(2).)

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

Analysis

i.

Fifth Cause of Action for Fraudulent Inducement

– Concealment

Fraud based on concealment requires

that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler).)

Defendant

argues that it had no direct dealings with Plaintiff and therefore had no duty to disclose additional information to her. (Mot., p. 13.)

Plaintiff claims that AHM had knowledge of what he calls an “Infotainment System Defect” as early as August 2017 (approximately five before the Subject Vehicle was manufactured) but intentionally concealed the facts regarding that alleged defect from him before he purchased the Subject Vehicle on March 11, 2024. (See Compl. ¶¶ 49 – 59.) Plaintiff describes the alleged “Infotainment System Defect” as causing the system to “frequently freeze or crash” resulting in “unexpected audio or video—or a blank or blue infotainment screen.” (Id. ¶ 46.) Defendant contends that Plaintiff purchased the Subject Vehicle from a dealership, which was not AHM's agent. (UMF No. 1.) Defendant further contends that before Plaintiff purchased the Subject Vehicle, Plaintiff had never talked with anyone at AHM. (UMF No. 3.)

Here,

Defendant carries its burden to establish that there was no relationship between the parties that gives rise to a duty to disclose facts as Defendant is the vehicle manufacturer while Plaintiff only entered into a contract with a third-party retailer, and Plaintiff puts forth no evidence that the dealership was AHM's agent. (See Hoffman, supra, 228 Cal.App.4th at p. 1187.)

“A

duty to disclose requires a preexisting relationship between the parties, such as between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant;

it cannot arise between the defendant and the public at large.” (Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884, 901-902 (Bjoin), internal quotation marks and citations omitted, quoting LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337, and Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312 (Bigler-Engler); see Rattagan, supra, 17 Cal.5th at pp. 40-41).) The undisputed material facts show that Plaintiff and AHM did not deal directly with each other when Plaintiff purchased the subject vehicle.

Moreover,

“California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.” (Ford Motor Warranty Cases (2023) 89 Cal.App.5th 1324, 1335, aff’d, 17 Cal.5th 1122, 570 P.3d 857 (2025); see also Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1134 [“Express warranties may arise from sources outside a sales contract, including statements in a manufacturer’s brochure [citations], and we have acknowledged that ‘the implied warranty of merchantability arises by operation of law.’ [Citation.]”].) Plaintiff’s warranty claims are based on statute, not contract. (See Compl.; Ballesteros v. Ford Motor Co. (2025) 109 Cal.App.5th 1196, 1202, review dismissed, cause remanded [“we conclude that [buyer’s] statutory claims against [manufacturer] are based on warranties that fall outside the four corners of [buyer’s] contract with [dealership]”; see also Jones v. Awad (2019) 39 Cal.App.5th 1200, 1211 (Jones) [“Summary judgment proceedings usually are limited to the issues framed by the pleadings. [Citation.]”].)

Therefore,

the undisputed material facts also show that the warranty that accompanied the purchase of the subject vehicle did not impose a duty to disclose on AHM.

Plaintiff fails to oppose
and thus fails to establish
a triable issue of material fact on this issue.

Thus,

summary adjudication is GRANTED as to the fifth cause of action.

In

the interests of judicial economy, the Court declines to reach Defendant’s

other basis for summary adjudication.

CONCLUSION

Defendant's Motion for Summary Adjudication
of the Fifth Cause of Action for Fraudulent Inducement – Concealment is
GRANTED.